

Court No. - 29

Case :- WRIT - C No. - 34019 of 2019

Petitioner :- Matloob Ali

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ziya Uddin

Counsel for Respondent :- C.S.C.

Hon'ble Pankaj Mithal,J.

Hon'ble Vivek Agarwal,J.

Counsel for the petitioner is directed to serve notice of the writ petition upon the panel lawyer of the Pachimanchal Vidyut Vitran Nigam Ltd.

Put up on 31.10.2019 in the additional cause list.

Order Date :- 23.10.2019

S.K.S.

Court No. - 29

Case :- WRIT - C No. - 34019 of 2019

Petitioner :- Matloob Ali

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ziya Uddin

Counsel for Respondent :- C.S.C.

Hon'ble Pankaj Mithal,J.

Hon'ble Vivek Agarwal,J.

Heard learned counsel for the petitioner and learned counsel for the respondents.

On the basis of the electricity bill dated 02.04.2019, the demand notice dated 04.04.2019 for a sum of Rs.1,42,716/- has been served upon the petitioner.

The submission of learned counsel for the petitioner is that the aforesaid bill is incorrect and therefore the recovery is bad in law.

Sri Rajesh Yadav, learned counsel appearing for the respondent No.2 submits that correctness of the bill can be examined by the Executive Engineer.

In view of the aforesaid facts and circumstances, we dispose of the writ petition with the direction to the Executive Engineer to consider and decide the representation of the petitioner dated 27.07.2019 disputing the correctness of the aforesaid bill in accordance with the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005 most expeditiously, if possible, within a period of one month from the date, a copy of this order along with a fresh representation in this regard is submitted before the respondent No.2.

In case, petitioner deposits a sum of Rs.40,716/-, the electric connection of the petitioner shall be restored forthwith subject to the decision on the representation of the petitioner as directed above.

The writ petition is **disposed off**.

Order Date :- 31.10.2019

Ashutosh